29

FOR SIX MONTHS — ever since the end of the preparatory hearings in January — we had been awaiting and preparing for our formal trial, which was to commence in August 1958. The government set up a special high court — Mr. Justice F. L. Rumpff, president of the three-man court, Mr. Justice Kennedy, and Mr. Justice Ludorf. The panel was not promising: it consisted of three white men, all with ties to the ruling party. While Judge Rumpff was an able man and better informed than the average white South African, he was rumored to be a member of the Broederbond, a secret Afrikaner organization whose aim was to solidify Afrikaner power. Judge Ludorf was a well-known member of the National Party, as was Judge Kennedy. Kennedy had a reputation as a hanging judge, having sent a group of twenty-three Africans to the gallows for the murder of two white policemen.

Shortly before the case resumed, the state played another unpleasant trick on us. They announced that the venue of the trial was to be shifted from Johannesburg to Pretoria, thirty-six miles away. The trial would be conducted in an ornate former synagogue that had been converted into a court of law. All of the accused as well as our defense team resided in Johannesburg, so we would be forced to travel each day to Pretoria. The trial would now take up even more of our time and money — neither of which we had in abundance. Those who had managed to keep their jobs had been able to do so because the court had been near their work. Changing the venue was also an attempt to crush our spirits by separating us from our natural supporters. Pretoria was the home of the National Party, and the ANC barely had a presence there.

Nearly all of the ninety-two accused commuted to Pretoria in a lumbering, uncomfortable bus, with stiff wooden slats for seats, which left every day at six in the morning and took two hours to reach the Old Synagogue. The round-trip took us nearly five hours — time far better spent earning money to pay for food, rent, and clothes for the children.

Once more we were privileged to have a brilliant and aggressive defense team, ably led by advocate Israel Maisels, and assisted by Bram Fischer,